

A portion of the defense conference call today related to argument of the remand opposition. I reminded the group that you wished to argue. Apparently all three defendants who filed briefs will argue through counsel. Per the Order, defendants have one hour total to divide. It was agreed that it would be beneficial to have you, Jim Springer (Duke), and John Sturgeon (Mirant) caucus by telephone to iron out the details including time allocation, order of presentation, subjects to be covered, strategy etc. Other counsel are free to forward their thoughts as to likely questions etc. Chris Healy advised that he would like to be involved in your discussions on these points. Thereafter you would distribute argument outlines for review and comment by all. There will then be a Conference call involving the Defense Group on the preceding Friday 6/15 @ 9 A.M. to iron out any issues. Do you have any problems with this approach? I will leave it to you to coordinate these efforts with your calendar. If you want me to assist please let me know.

Defendants are still continuing in their position that Judge Whaley should defer these rulings until the MDL has acted. A letter to the Court to this effect is being delivered today. However we are proceeding on the assumption that the hearing will proceed on 6/18. Query what the impact would be if the M.L. assigned all cases to Judge Whaley prior to 6/18. Would this result in a continuance to permit the other remand issues to be heard all at once? I'll certainly advise you ASAP of any hearing date change.

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